

Missing verification to account. Prob.C. § 1021.

Account, as filed, does not comply with any format or content requirements of Prob.C. § 1060–1064: missing opening property on hand schedule in required form; missing other charges schedules (receipts, gains on sale); missing credits schedules (disbursements, distributions, losses on sale); trustee's time log is not part of an accounting; trustee may not demand payments from Ricardo Garcia through an account; missing final property on hand schedule.

Missing required trustee report. Prob.C. § 1064.

The account, as filed, cannot be approved.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing.

15. S-PR-0014079 In Re the William E. Lauritsen Liv Trust

Petition to determine trust property is recommended for approval as prayed.

16. S-PR-0014081 In Re the Estate of Dutt, Brahm

Missing sufficient notice of hearing, service of notice of hearing, and publication for petition to administer estate. Notice of hearing as filed, served, and published relates only to a July 17 hearing that has been rescheduled by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated June 1. New notice, service (or waiver(s)), and publication are needed.

17. S-PR-0014082 In Re the Phillip S. Casebolt and Ethel M. Casebolt Rev Trust

Petitioner response is needed: proposed trustee Christa Kinsman is required to post bond. Prob.C. § 15602(a)(3). Bond is not addressed in the petition.

18. S-PR-0014083 In Re the Estate of Gibson, Robert

Appearance is required for hearing on petition to determine interest in insurance proceeds.

Missing sufficient service of notice of hearing. Personal representative of the estate of Robert Gibson or other successor(s) to decedent must be served. Nothing in the petition establishes that the estate of decedent Robert Gibson is being administered in any jurisdiction. Service to decedent's minor children is insufficient under Prob.C. § 851(a)(2) (and compare C.R.C. 7.51(a)(1)-(2) & (d)) because petitioner has not been appointed fiduciary for minors in any capacity. Petitioner cannot be appointed guardian ad litem in this proceeding because she has a direct conflict of interest with them.

Points and authorities needed: petitioner does not show how § 850 relief is available where neither decedent nor the estate holds, has held, or claims any interest in the disputed proceeds.

Petitioner response is needed: petitioner provides insufficient information concerning the dissolution action in Sacramento County Superior Court. Petitioner alleges said action "is still pending," suggesting said court previously granted a status-only dissolution decree pursuant to Fam.C. § 2337. If that occurred, the court was required to "expressly reserve jurisdiction for later determination of all other pending issues." Id. at subdiv. (f). Petitioner's claim that decedent violated ATROs and she is entitled to the proceeds of his life insurance policy appears to fall within "all other pending issues." Accordingly, the petition here provides insufficient information to determine whether petitioner's claim can be heard in this court.

Petitioner response is needed: the petition includes insufficient information concerning the policy, premiums, and insurability of decedent to apply *Marriage of Burwell* (2013) 221 Cal.App.4th 1, a case cited by petitioner in support of the petition.

19. S-PR-0014084 In Re the Estate of Reed, Gloria L.

It is recommended the primary residence succession petition be denied. The terms of the will offered by petitioners include that "the home is to be sold and divided between Dan and Dennis." Petitioners are thus not devisees of the primary residence of decedent but only the proceeds of sale of the primary residence. Prob.C. § 13150 does not authorize a petition to determine succession to sale proceeds of estate property.

If the matter proceeds notwithstanding the foregoing recommended, the following additional calendar notes are provided:

Missing sufficient notice of hearing and service of notice of hearing. Mandatory form DE-115 is used only for Prob.C. § 850 petitions, as it states in ¶ 1. For other petitions, form DE-120 is required.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

20. S-PR-0014085 In Re the Estate of Christensen, Sandra Melvina

Missing sufficient notice of hearing and service of notice of hearing for petition to administer estate. Notice of hearing as filed and served relates only to a July 17 hearing that has been rescheduled by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated June 1. New notice and service or waiver(s) are needed.